

# SENATE BILL No. 135

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## DIGEST OF INTRODUCED BILL

**Citations Affected:** IC 13-11-2; IC 13-18-3-16; IC 15-17; IC 36-7-4-1109.6.

**Synopsis:** Alkaline hydrolysis for animal remains disposal. Authorizes alkaline hydrolysis as a lawful method of animal remains disposal in Indiana. Requires the state board of animal health to adopt standards for construction, operation, and biosecurity of alkaline hydrolysis. Requires the Indiana department of environmental management to adopt various regulations on alkaline hydrolysis. Defines zoning powers of a local unit regulating the disposal plant performing alkaline hydrolysis.

**Effective:** July 1, 2026.

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January 5, 2026, read first time and referred to Committee on Commerce and Technology.

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Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

## SENATE BILL No. 135

A BILL FOR AN ACT to amend the Indiana Code concerning agriculture and animals.

*Be it enacted by the General Assembly of the State of Indiana:*

1       SECTION 1. IC 13-11-2-106 IS AMENDED TO READ AS  
2       FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 106. **(a)** "Incinerator",  
3       for purposes of IC 13-21 and environmental management laws, means  
4       an engineered apparatus designed for the burning of solid waste under  
5       the effect of controls on the following:

- 6               (1) Temperature.  
7               (2) Retention time.  
8               (3) Air.  
9               (4) Other combustion factors.

10       **(b) The term does not include a disposal plant performing**  
11       **alkaline hydrolysis in compliance with IC 15-17-11.**

12       SECTION 2. IC 13-11-2-212, AS AMENDED BY P.L.54-2023,  
13       SECTION 15, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
14       JULY 1, 2026]: Sec. 212. (a) "Solid waste processing facility", for  
15       purposes of IC 13-19-3-8.2, IC 13-19-4, IC 13-20-1, IC 13-20-4, and  
16       IC 13-20-6, and subject to subsection (b), means a facility at which at  
17       least one (1) of the following is located:



- (1) A solid waste incinerator.
- (2) A transfer station.
- (3) A solid waste baler.
- (4) A solid waste shredder.
- (5) A resource recovery system.
- (6) A composting facility.
- (7) A garbage grinding system.
- (8) A medical or an infectious waste treatment facility.
- (9) A solid waste solidification facility that is not located on an operating, permitted landfill.
- (10) A facility that uses plasma arc or another source of heat to treat solid waste.

(b) The term "solid waste processing facility" does not include the following:

- (1) A facility or operation that generates solid waste.
- (2) An advanced recycling facility.
- (3) A disposal plant performing alkaline hydrolysis in compliance with IC 15-17-11.**

SECTION 3. IC 13-18-3-16 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 16. (a) The department shall adopt rules under IC 4-22-2 to establish:**

- (1) wastewater;**
- (2) effluent; and**
- (3) discharge;**

**standards for alkaline hydrolysis chambers used for the disposal of animal remains under IC 15-17-11.**

**(b) Rules adopted under this section must do the following:**

- (1) Distinguish alkaline hydrolysis from combustion-based disposal methods.**
- (2) Establish requirements for neutralization, storage, land application, or discharge.**
- (3) Identify when a National Pollutant Discharge Elimination System permit is required.**
- (4) Provide a streamlined registration or permit pathway for small-volume veterinary or agricultural systems.**

SECTION 4. IC 15-17-2-2.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 2.5. "Alkaline hydrolysis" means the dissolution of animal remains by:**

- (1) placing the animal remains in water and a chemical solution that includes:**



- (A) potassium hydroxide;
- (B) sodium hydroxide; or
- (C) a combination of potassium hydroxide and sodium hydroxide; and
- (2) introducing heat and pressure to breakdown the animal remains to only:
  - (A) bone fragments that may be pulverized; and
  - (B) a sterile liquid effluent;
- that are suitable for lawful disposal.

SECTION 5. IC 15-17-2-2.6 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 2.6. "Alkaline hydrolysis chamber" means an enclosed space that is:**

- (1) specifically created for alkaline hydrolysis; and
- (2) able to be completely sealed during alkaline hydrolysis.

SECTION 6. IC 15-17-11-2.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 2.5. A licensee that operates a disposal plant in compliance with this chapter may dispose of animal remains in one (1) of the following methods:**

- (1) Burial.
- (2) Incineration.
- (3) Rendering.
- (4) Composting.
- (5) Alkaline hydrolysis.
- (6) Any other method approved by the state veterinarian that protects public and animal health.

SECTION 7. IC 15-17-11-5.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 5.5. (a) A licensee that performs alkaline hydrolysis for the disposal of animal remains shall:**

- (1) construct, install, and operate the alkaline hydrolysis chamber in accordance with rules adopted under this chapter;
- (2) prevent the release of pathogens into the environment;
- (3) maintain secure handling of the animal remains;
- (4) manage effluent consistent with department of environmental management requirements; and
- (5) maintain records of:
  - (A) intake;
  - (B) processing; and
  - (C) final disposition;
- as required by the board.



(b) The board shall adopt rules under IC 4-22-2 to implement this section. Rules adopted under this chapter must include the following:

- (1) Minimum equipment requirements.
- (2) Biosecurity procedures.
- (3) Operator training.
- (4) Emergency shutdown and containment procedures.
- (5) Acceptable methods for handling residual bone material.

(c) A facility that performs alkaline hydrolysis under this chapter is not considered:

- (1) an incinerator (as defined in IC 13-11-2-106);
- (2) a crematory (as defined in IC 23-14-31-11); or
- (3) a medical waste processor;

for purposes of IC 36-7-4 (zoning) or any local ordinance.

SECTION 8. IC 36-7-4-1109.6 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1109.6. A unit may regulate the location of a disposal plant performing alkaline hydrolysis in compliance with IC 15-17-11 but may not do the following:

- (1) Classify the facility as an incinerator or a crematory.
- (2) Impose zoning requirements more restrictive than those applied to comparable veterinary or agricultural waste-handling facilities.

